

Provided further that no request for weighment of consignment in wagon load or train –load shall be allowed if the weighment is not feasible due to congestion in the yard or such other circumstances as may be prescribed.

Comment

Section 79 provides for weighment of consignment at the request of the consignee or the endorsee and the circumstances under which such weighment may not be permitted.

80. Liability of railway administration for wrong delivery :

Where a railway administration delivers the consignment to the persons who produce the railway receipt, it shall not be responsible for any wrong delivery on the ground that such person is not entitled thereto or that the endorsement on the railway receipt is forged or otherwise defective.

Comment

Section 80 absolves the railway administration from liabilities for delivery of consignment on production of railway receipt.

81. Open delivery of consignments : Where the consignment arrives in a damaged condition or shows signs of having been tampered with and the consignee or the endorsee demands open delivery, the railway administration shall give open delivery in such manner as may be prescribed.

Comment

Section 81 provided for open delivery of consignment if received in damaged condition.

82. Partial delivery of consignment :

(1) The consignee or endorses shall, as soon as the consignment or part thereof is ready for delivery, take delivery of such consignment or part thereof notwithstanding that such consignment or part thereof is damaged.

(2) In the case of partial delivery under sub-section (1) the railway administration shall furnish a partial delivery certificate, in such form as may be prescribed.

(3) If the consignee or endorsee refuses to take delivery under sub-section (1), the consignment or part thereof shall be subject to wharfage charges beyond the time allowed for removal.

Comment

Section 82 lays down that the consignee or the endorsee shall take delivery of the consignment or part thereof and in case of failure to take delivery wharfage charges may be levied.

83. Lien for freight or any other sum due.- (1) If the consignor, the consignee or the endorsee fails to pay on demand any freight or other charges due from him in respect of any consignment, the railway administration may detain such consignment or part thereof or, if such consignment is delivered, it may detain any other consignment of such person which is in, or thereafter comes into, its possession.

(2) The railway administration may, if the consignment detained under sub-section (1) is --

(a) perishable in nature, sell at once ; or

(b) not perishable in nature, sell by public auction,

Such consignment or part thereof, as may be necessary to realize a sum equal to the freight or other charges:

Provided that where a railway administration for reasons to be recorded in writing is of the opinion that it is not expedient to hold the auction, such consignment or part thereof may be sold in such manner as may be prescribed.

(3) The railway administration may, shall give a notice of not less than seven days of the public auction under Cl. (b) of sub-section (2) in one or more local news papers or where there are no such manner as may be prescribed.

(4) The railway administration may, out of the sale proceeds received under sub-section (2) retain a sum equal to the freight and other charges including expenses for the sale due to it and the surplus of such proceeds and the part of the consignment, if any, shall be rendered to the person entitled thereto.

Comment

Section 83 provides for detention of consignment, part thereof or any other consignment of a person from whom any charges are recoverable by a railway administration and the manner of disposal of such consignment and rendering the surplus of sale proceeds to the person entitled thereto.